

Imperial Phase 3, Land at Imperial Street Bromley by Bow

In the London Borough of Tower Hamlets (LLDC)

planning application no. 19/00554/FUL

Strategic planning application stage 1 referral

Town & Country Planning Act 1990 (as amended); Greater London Authority Acts 1999 and 2007; Town & Country Planning (Mayor of London) Order 2008.

The proposal

The construction of a residential-led mixed use development comprising a series of buildings ranging from three to 14 storeys in height to provide 321 residential units, approximately 306 sq.m. of flexible commercial and retail floorspace, and all associated infrastructure, access, and hard and soft landscaping (including the replacement of the adjacent river wall).

The applicant

The applicant is **Guinness Developments Limited** and the architect is **PRP**.

Strategic issues summary

Principle of development: The residential-led mixed use scheme within the Olympic Legacy Opportunity Area is strongly supported (paragraphs 15-17).

Affordable housing: The application site (which comprises Phase 3 of the wider masterplan) would provide 22% affordable intermediate housing by habitable room with public subsidy; however, when combined with the separate proposed changes to Phase 2, the overall provision of affordable housing across the two phases would be 48%. The two phases must be linked by an overarching S106 agreement securing the quantum, tenure, affordability and delivery of the affordable housing. The applicant's viability assessment and the Corporation's independent review will be robustly scrutinised by GLA officers to ensure that the maximum amount of affordable housing is secured. (paragraphs 19-26).

Heritage and urban design: The design is broadly supported and no harm would be caused to the setting of nearby heritage assets. Residential quality issues to be addressed (paragraphs 27-36).

Environment: Further information is required on the energy strategy. (paragraphs 37-42).

Transport: Further information on disabled parking and cycle parking are required; and, various contributions and transport-related plans to be secured (paragraphs 43-49).

Recommendation

That London Legacy Development Corporation be advised that whilst the principle of development is supported the application does not yet fully comply with the London Plan and Mayor's intend to publish London Plan for the reasons set out in paragraph 53 of this report. However, the resolution of these issues could lead to the application becoming compliant with the London Plan and Mayor's intend to publish London Plan.

Context

1 On 19 December 2019, the Mayor of London received documents from London Legacy Development Corporation notifying him of a planning application of potential strategic importance to develop the above site for the above uses. The application was validated on 6 January 2020. Under the provisions of The Town & Country Planning (Mayor of London) Order 2008 the Mayor has until 16 February 2020 to provide the Council with a statement setting out whether he considers that the application complies with the London Plan and draft London Plan, and his reasons for taking that view. The Mayor may also provide other comments. This report sets out information for the Mayor's use in deciding what decision to make.

2 The application is referable under Categories 1A, 1B and 1C of the Mayor of London Order 2008:

- **Category 1A:** *“Development which comprises or includes the provision of more than 150 houses, flats, or houses and flats.”*
- **Category 1B:** *“Development (other than development which only comprises the provision of houses, flats, or houses and flats) which comprises or includes the erection of a building or buildings—(c) outside Central London and with a total floorspace of more than 15,000 square metres.”*
- **Category 1C:** *“Development which comprises or includes the erection of a building of (c) more than 30 metres high and is outside the City of London.”*

3 Once London Legacy Development Corporation has resolved to determine the application, it is required to refer it back to the Mayor for his decision as to whether to direct refusal or allow the Corporation to determine it itself.

4 The environmental information for the purposes of the Town and Country Planning (Environmental Impact Assessment) Regulations 2011 has been taken into account in the consideration of this case.

5 The Mayor of London's statement on this case will be made available on the GLA website www.london.gov.uk.

Site description

6 Formerly industrial land, the application site is Phase 3 (Plot A) of a larger master planned parcel of land consisting of Phases 2 and 3 (Plots D1 and A) and the former Danescroft-owned site Phase 1 (Plot 2), now also under the ownership of the applicant. The application site is bound to the south by the London Underground District line, to the west by Plot 2 and the A12 beyond, and the River Lea to the east. To the north is Plot D1 and a Tesco store with surface car parking. See Figure 1 below.

7 The site lies within the Olympic Legacy Opportunity Area. It is recognised by the LLDC as a key development site, and is formally allocated within the LLDC Local Plan (Site Allocation SA4.1: Bromley-by-Bow) for comprehensive mixed-use development including housing to contribute towards the creation of a new district centre, along with a new access route from the A12, improved linkages to the north and east, open space and a riverside walk. The site is not within a conservation area; however, the Three Mills Conservation Area is very close across the River Lea to the east and includes heritage

assets, including the Grade I Listed Tide Mill (also known as House Mill) and the Grade II listed Offices Opposite Clock Mill and the Clock Mill.

Figure 1: Site location



8 The A12 forms part of the Transport for London Road Network (TLRN) and the nearest part of the Strategic Road Network (SRN) is Stratford High Street, approximately 600 metres away to the north. There are three bus services available within a 400-metre walk of the site - route 488 and D8 at bus stops on or adjacent to the A12 and route 323 on Devas Street.

9 Bromley-by-Bow London Underground station is 100 metres away on the western side of the A12 and provides access to London Underground services on the District and Hammersmith & City lines. Two Docklands Light Railway stations, Bow Road and Devons Road are both approximately 700 metres away from the western edge of the sites. The closest cycle hire docking stations are both approximately 500 metres away from the site at Devons Road and Bromley High Street. The site therefore has a good public transport accessibility level (PTAL), with a score of 4 on a scale of 0 to 6b, where 6b is the highest.

Details of the proposal

10 Guinness Developments Ltd, a subsidiary of The Guinness Partnership -a registered social housing provider and GLA Strategic Partner - proposes to redevelop the site to provide a residential-led development, involving the erection of 5 buildings, including 2 townhouse blocks, ranging in height from 3 to 14 storeys, comprising: 321 new residential units; 300 sq.m. of commercial floorspace; Blue Badge and cycle parking; and associated landscaping.

Case history

11 GLA officers provided initial pre-application advice on this scheme on 17 September 2019, covering strategic issues with respect to: principle of development, urban design, housing, affordable housing, inclusive access, sustainable development/climate change and transport. The pre-application advice note issued by the GLA strongly supported the principle of a residential-led mixed use scheme, subject to clarification of the proposed level of affordable housing, affordable tenure mix and affordability.

12 Prior to this, a planning application was submitted to LLDC in 2017 for the redevelopment of the site (Plots A and D1) for 407 residential units and commercial space (ref: 17/00344/FUL/GLA4415). The application was referred to the Mayor in August 2017. Following the Mayor's Stage 1 report and subsequent negotiations on the affordable housing, LLDC decided to approve the application and in May 2018 the Mayor informed the Corporation that he was content for it to determine the case itself. Planning permission was issued on 20 June 2018. It should be noted that Phase 1 (ref:17/00364/FUL/GLA4300) was also granted planning consent in 2018.

Strategic planning issues and relevant policies and guidance

8 For the purposes of Section 38(6) of the Planning and Compulsory Purchase Act 2004, the development plan in force for the area comprises Legacy Development Corporation Local Plan (2015-2031) and, the London Plan 2016 (Consolidated with Alterations since 2011).

13 The relevant issues and corresponding policies are as follows:

- Opportunity Areas *London Plan; Olympic Legacy SPG;*
- Employment land *London Plan; Land for Industry and Transport SPG;*
- Housing/Affordable housing *London Plan; Housing SPG; Housing Strategy; Shaping Neighbourhoods: Play and Informal Recreation SPG; Shaping Neighbourhoods: Character and Context SPG; Affordable Housing and Viability SPG;*
- Urban design *London Plan; Shaping Neighbourhoods: Character and Context SPG; Housing SPG; Shaping Neighbourhoods: Play and Informal Recreation SPG;*
- Inclusive design *London Plan; Accessible London: Achieving an Inclusive Environment SPG;*
- Environment *London Plan; Sustainable Design and Construction SPG; Mayor's Environment Strategy;*

- Transport *London Plan; Mayor's Transport Strategy.*

14 The following are relevant material considerations:

- the National Planning Policy Framework and National Planning Practice Guidance;
- The London Plan – Intend to publish version (December 2019), which should be considered on the basis explained in the NPPF; and,
- Bromley-By-Bow SPD (2017).

Principle of development

15 The London Plan and the Mayor's intend to publish London Plan both identify the optimisation of land as a key part of the strategy for delivering additional homes in London. London Plan Policy 2.13 and Policy SD1 of the Mayor's intend to publish London Plan identify Opportunity Areas as one of the focal points for intensification. The application site falls within the Olympic Legacy Opportunity Area, which is identified in the Mayor's intend to publish London Plan as having an indicative employment capacity of 65,000 jobs and a minimum of 39,000 new homes.

16 The site is also non-designated industrial land. Policy E7C of the Mayor's intend to publish London Plan sets out the below scenarios where mixed-use or residential developments on non-designated industrial sites should be supported:

- there is no reasonable prospect of the site being used for the industrial and related purposes set out in Part A of Policy E4 Land for industry, logistics and services to support London's economic function; or,
- it has been allocated in an adopted local development plan document for residential or mixed-use development; or,
- industrial, storage or distribution floorspace is provided as part of mixed-use intensification.

17 Locally, as stated earlier in this report, the site forms part of LLDC Local Plan Site Allocation SA4.1, which has been identified for comprehensive mixed-use development. The proposal is broadly in line with the land uses proposed within this site allocation, and as such the redevelopment of this non-designated industrial site is acceptable in line with Policy E7 of the intend to publish London Plan. The proposed scheme would deliver new homes (including an uplift on the previously consented scheme for this plot) and commercial units and is therefore supported in strategic terms given its optimisation of land use for housing delivery in line with London Plan Policy 2.13 and 3.3 and Policies SD1, E7C, GG2 and H1 of the Mayor's intend to publish London Plan.

Housing

18 London Plan Policy 3.3, in seeking to increase the supply of housing in London, sets borough housing targets, and in Table 3.1 puts the minimum annual monitoring target for the London Legacy Development Corporation (LLDC) at 1,471 additional homes per year between 2015 and 2025. Under Policy H1, Table 4.1, of the Mayor's intend to publish London Plan, a ten-year target of 21,540 homes is set for the LLDC. The scheme would deliver 321 new homes (an uplift of 66 units in Phase 3 compared to

the consented scheme), which would contribute positively to the above targets and is strongly supported. The proposed housing mix by unit type is set out below in Table 1.

Table 1: Proposed housing

tenure	1Bed	2Bed	3Bed	3Bed townhouse	total units	total hr	hr by %
private	114	127	6	6	253	663	78%
shared ownership	25	35	8	0	68	187	22%
total	139	162	14	6	321	850	100%

Affordable housing

19 London Plan Policies 3.11 and 3.12 and Policy H4 of the Mayor's intend to publish London Plan seek to maximise the delivery of affordable housing, with the Mayor setting a strategic target of 50%. Policy H6 of the Mayor's intend to publish London Plan provides a flexibly prescribed tenure mix of: 30% social rent/London Affordable Rent; 30% intermediate products; and, 40% to be determined by the relevant borough as low cost rented homes or intermediate products. Locally, the LLDC has set a borough-wide target of 35% and expects a tenure mix of 60% affordable/social rent and 40% intermediate.

20 Policy H5 of the Mayor's intend to publish London Plan and the Mayor's Affordable Housing and Viability SPG set out a 'threshold approach', whereby schemes meeting or exceeding a specific percentage of affordable housing by habitable room, without public subsidy, and other criteria such as tenure mix are eligible for the Fast Track Route (FTR). Such applications are not required to submit viability information to the GLA and are also exempted from a late stage review mechanism. On non-designated industrial land, where there is any loss of industrial capacity, a minimum of 50% affordable housing by habitable room, without public subsidy, must be provided to be eligible for the FTR.

21 The current application relates to Phase 3 of the overall masterplan, and within this phase, 68 shared ownership units are proposed, which equates to 22% affordable housing by habitable room. The applicant, however, as a GLA Strategic Partner is committed to delivering 50% affordable housing across its portfolio. As stated earlier in this report at paragraph 6, the current application site was included within a larger parcel of land (covering Phases 2 and 3), which was subject to a planning application granted in 2018 and included 30% affordable housing overall. The applicant has acquired the whole of the wider site, and it should be noted that the applicant has submitted a separate Section 96A application to undertake non-material amendments to the internal layout, appearance and landscaping of Phase 2 (Plot D1). As part of this exercise, the applicant has embarked on a comprehensive review of the allocation and provision of affordable housing across both sites. This will result in the combined level of affordable housing across both phases increasing from 30% to 48% by habitable room, supported by GLA grant funding. The details of this uplift are set out in Table 2 below. Whilst the S96A amendments and revised tenure mix for Phase 2 are not referable to the GLA, it is intended that a revised S106 covering both sites, and securing a minimum of 48% affordable housing provision across the two phases, will be prepared and submitted to the GLA prior to determination of the current application at Stage 2.

Table 2: Consented vs proposed affordable housing (Phases 2 and 3)

	consented scheme			proposed		
tenure	1B	2B	3B	1B	2B	3B
London Affordable Rent	11	25	5	32	9	29
Shared ownership	8	53	11	70	56	16
total units	113			212		
total habitable rooms	336			579		
total habitable rooms by %	30%			48%		

22 Notwithstanding the above tenure mix, it is understood that the applicant is engaged in on-going discussions with the LLDC and the GLA regarding additional funding and, as part of this engagement, is exploring the option of delivering additional LAR in lieu of shared ownership units in Phase 2 (Plot D1) to achieve full compliance with LLDC's policy on affordable tenure mix. Full details of this must be provided to the GLA prior to any Stage 2 referral. Additionally, it should be noted that the applicant, having also recently acquired Phase 1 (the former Danescroft site), has submitted a Deed of Variation application to the LLDC to amend the tenure mix of this phase to provide 50% shared ownership rather than 25% DMR units as consented.

23 Given the level of affordable housing proposed in the current application, on former industrial land, and the use of public subsidy, the scheme is not eligible for the FTR. The application is therefore supported by a viability assessment and GLA officers will robustly interrogate the submitted viability information, along with the LLDC's independent review, to ensure that the maximum amount of affordable housing is secured. Early implementation and late stage review mechanisms will be required in accordance with Policy H5 of the Mayor's intend to publish London Plan and to optimise affordable housing delivery in accordance with strategic policy objectives. Should the application deliver 50% affordable housing (without public subsidy) and with an acceptable tenure mix, a late stage review would not be required.

24 The shared ownership units should be provided in line with the household income cap and affordability eligibility criteria for intermediate products set out in the London Plan, Mayor's intend to publish London Plan and the Mayor's Affordable Homes Programme Funding Guidance. It is expected that intermediate units are made available to a range of maximum household income thresholds below the maximum £90k or £60k income cap threshold referred to above.

25 As explained above, to ensure that the final quantum and mix of affordable homes across both sites are robustly secured, a new Section 106 agreement which will wholly replace the existing agreement is required. A draft of this new legal agreement must be provided to the GLA for review as soon as one is available to ensure that the

agreed level of affordable housing, requisite review mechanisms and affordability have been secured and the eligibility criteria for the affordable units comply with the London Plan, Mayor's intend to publish London Plan and the Mayor's Affordable Homes Programme Funding Guidance.

26 Finally, the LLDC must publish both the applicant's financial viability assessment and the independent review in accordance with Policy H5 of the Mayor's intend to publish London Plan and Affordable Housing and Viability SPG to ensure transparency.

Heritage and urban design

27 The scheme has been subject to design review discussions in accordance with Policy D4 of the Mayor's intend to publish London Plan.

Heritage

28 The Planning (Listed Buildings and Conservation Areas) Act 1990 sets out the tests for dealing with heritage assets in planning decisions. Regarding listed buildings, all planning decisions should "*have special regard to the desirability of preserving the building or its setting or any features of special architectural or historic interest which it possesses*". The NPPF states that when considering the impact of the proposal on the significance of a designated heritage asset, great weight should be given to the asset's conservation and the more important the asset, the greater the weight should be. Significance can be harmed or lost through alteration or destruction of the heritage asset or development within its setting.

29 As indicated in paragraph 7 of this report, there are listed buildings to the east of the site within the Three Mills Conservation Area. As with the consented scheme, the development will be visible in views from nearby conservation areas, with the most immediate impact on the Three Mills Conservation Area. The scheme would introduce buildings of a high quality, including significant improvement to the landscaping adjacent to the riverside, and there would be an improvement to the views towards the site from within the conservation area. The proposed development would increase the amount of development visible in the background to the Tide Mill; however, the setting of this building is already characterised by modern buildings of considerable scale. Having regard to the statutory duties in respect of listed buildings in the Planning (Listed Buildings and Conservation Areas) Act 1990, and the relevant paragraphs in the NPPF, in view of the above analysis GLA officers consider that the proposed development would not cause harm to the setting of the nearby heritage assets.

Density

30 The net residential density for the proposed development is approximately 934 habitable rooms and 352 units per hectare respectively, which falls within the guidance range of 650-1100 habitable rooms and 140-405 units per hectare as set out in Table 3.2 of the London Plan for sites with a PTAL of 4 and a central character setting. The number of units per hectare and height of the building, however, exceeds the threshold for increased scrutiny of design quality set out in the Mayor's intend to publish London Plan. Having undergone a design review with the LLDC and in view of the location of the site within the opportunity area, transport accessibility and optimisation of land use to deliver affordable housing, the proposed density is supported. In line with Policy D4 of the Mayor's intend to publish London Plan, a management plan detailing day-to-day servicing and delivery arrangements and long-term maintenance implications, as

detailed in paragraph 3.4.9, will be required. The agreed maintenance plan should be secured by condition as part of any permission.

Layout and massing

31 The proposed layout is broadly supported, as it responds well to its context in the orientation of the blocks and the relationship to the river's edge. The site's position currently marks the end of the pedestrian route along the west side of the river, a factor which is well-considered through the landscape design. The utilisation of the yard spaces between the building blocks as amenity space is welcomed. The Corporation should secure public access to these yards under conditions that facilitate public accessibility whilst ensuring residents' safety and privacy. The proposed massing is acceptable given the site's location within an opportunity area and the existing and emerging built context.

Residential quality

32 All units would meet the internal space standards contained within the London Plan, the Mayor's intend to publish London Plan and the Housing SPG. Floor to ceiling heights are proposed to be at least 2.5 metres and the provision of dual aspect units has been maximised, with no solely north- or south-facing single-aspect units (or units solely facing the railway). Each of the proposed units would have access to private amenity space balconies or terraces. Except for Blocks 1 and 2, the buildings would have efficient cores in line with the Mayor's Housing SPG. Where there is exceedance, this would be 10 units per core, which in the context of the proposed design quality and approach to internal corridors is considered acceptable.

33 As recommended at the pre-application stage, consideration should be given to providing more ground floor residential entrances, particularly along the street to the north of the blocks. This would improve the ratio of active frontages and allow the residential units positioned at street level to have their individual front entrances. In these units, the locating of bedrooms facing onto the street should be avoided. In addition, the proposed affordable homes should be distributed throughout the scheme and benefit from equal design quality and position on the site and this should be demonstrated by the applicant prior to the Mayor's final determination.

34 The proposal responds positively to London Plan Policy 3.8 and Policy D7 of the Mayor's intend to publish London Plan and meets Building Regulation requirement M4 (2) 'accessible and adaptable dwellings' and Building Regulation requirement M4 (3) 'wheelchair user dwellings'. To ensure the safety of future occupants, a fire safety statement prepared by Hoare Lea has been submitted with the application and should be secured in accordance with Policy D12 of the Mayor's intend to publish London Plan.

35 In accordance with London Plan Policy 3.6 and Policy S4 of the Mayor's intend to publish London Plan, development proposals that include housing should provide play space for children based on the short and long-term needs of the expected child population generated by the scheme. The total play space required, using the GLA's 2019 child play space calculator, is 374 sq.m., which would be provided on-site as part of the wider master plan play strategy. The Corporation should ensure that the play space exhibits the highest standards of inclusiveness, accessibility and safety. In line with Policy S4 of the Mayor's intend to publish London Plan, the proposed play space must not be segregated by tenure.

Architecture

36 The use of materials that reflect surrounding context and character are supported. The LLDC's planning officers should seek to secure a high quality of design through conditions linked to facade details and additional material specification.

Environment

37 Full details of the outstanding issues relating to Environment have been provided directly to the applicant and LLDC.

Energy strategy

38 The applicant has submitted an energy assessment in accordance with London Plan Policy 5.2 and Policy SI1 of the Mayor's intend to publish London Plan. An on-site reduction of 155 tonnes of carbon dioxide per year in regulated emissions compared to a 2013 Building Regulations compliant development is expected for the domestic element, equivalent to an overall saving of 49%, which does not meet the required zero carbon target. For the non-domestic element, a reduction of 7 tonnes of carbon dioxide per year and an overall saving of 39% is expected. Further information is required relating to overheating and the site-wide network. In addition, provision of PV cells should be reconsidered and maximised and a detailed technical study on the potential to decarbonise the masterplan network at the current time should be provided. A payment to the borough's offset fund will be necessary and should be secured in the Section 106 agreement.

Flood risk, sustainable drainage and water efficiency

39 The site is in Flood Zone 2 and a flood risk assessment (FRA) has been submitted as required under the NPPF. The FRA considers the risk of flooding from a range of sources. When mitigation measures are considered, the residual flood risk to the site is low. As the site sits on the bank of the River Lea, the applicant should agree appropriate measures with the EA to ensure access for bank maintenance and defence raising over the life of the development in accordance with London Plan Policy 5.12 and Policy SI12 of the Mayor's intend to publish London Plan.

40 In terms of surface water management, the drainage strategy provides an assessment of greenfield runoff rates, existing runoff rates, and attenuation storage required to restrict the 100-year (plus 40% climate change) post-development discharge rate to three times greenfield rate prior to discharge to the River Lea. The strategy proposes a mix of green roofs, permeable paving, raingardens and an attenuation tank and generally satisfies the requirements of London Plan Policy 5.13 and Policy SI13 of the Mayor's intend to publish London Plan.

41 The sustainability statement proposes that the proposed dwellings will have a maximum indoor water consumption of 105 l/person/day, in line with the optional standard in Part G of the Building Regulations, and compliant with Policy 5.15 of the London Plan and Policy SI5 of the Mayor's intend to publish London Plan. The applicant, however, should consider water harvesting and reuse to reduce consumption of wholesome water across the entire development site. This can be integrated with the surface water drainage system to provide a dual benefit.

Urban greening

42 In line with London Plan Policy 5.10 and Policies G1 and G5 of the Mayor's intend to publish London Plan, urban greening has been embedded as a fundamental element of site and building design. The Urban Greening Factor of the proposal has been calculated in accordance with Policy G5, which recommends a target score of 0.4 for predominantly residential developments. The proposed development records an Urban Greening Factor score of 0.36, which is supported given the quality and quantum of greening measures to be introduced.

Transport

Trip generation and impact

43 The proposed increase of 66 units compared to the consented scheme is not expected to have any additional impact on the local and strategic highway network given the car free nature of the scheme; however, a minor increase in public transport trips is expected. The assessment sets out the impact on the London Underground network and the gate line at Bromley-by-Bow station. Although some clarification is required, no significant impact has been forecasted. Notwithstanding the minor impact on the nearest bus routes, in this instance, contributions toward the bus network or Bromley-by-Bow station are not being sought. Instead, priority is being given to the delivery of the site-wide highway improvements. The applicant is committed to a new S106 agreement that includes a £2.5m contribution towards A12 works, to be used in conjunction with the £2.5m secured from the adjoining adjacent consented site. This should be retained under this permission. The timing and phasing of payments and delivery of the junctions will therefore need to be discussed between LLDC, TfL and the applicant and agreed prior to Committee.

Healthy streets

44 The transport assessment (TA) includes a pedestrian environment review system (PERS) audit undertaken in October 2016 for the previous application. Although this is not in line with the new Healthy Streets approach for TAs, given the context of the site and emerging masterplan development and enhancements this is acceptable in this instance. The proposed development accords with Policies 6.7 and 6.10 of the London Plan and Policies D7 and T2 of the Mayor's intend to publish London Plan and supports Vision Zero of the Mayor's Transport Strategy.

Car and cycle parking

45 Apart from 16 disabled parking spaces, the development would be car-free. This is supported, but the applicant should demonstrate how the required 10% in the long-term could be achieved. This should be set out in a parking design and management plan (PDMP), which should be secured via condition and discharged in consultation with TfL prior to occupation. Car club provision is available on an adjacent site and two years' car club membership should be secured as well as residents' and occupants ineligibility for local on-street parking permits. The Transport Assessment submitted with the application refers to motorcycle parking; however, given the car free nature of the scheme and on-street parking, motorcycle parking should be considered as part of the public realm and landscaping design. Further details on the proposed motorcycle parking should be secured by condition.

46 The commercial element of the development is also car free, which accords with Policy T6.2 and Policy T6.3 of the Mayor's intend to publish London Plan. However, as set out in Policy T6.5 of the Mayor's intend to publish London Plan, all non-residential elements should provide access to at least one on or off-street disabled persons parking bay. The applicant should clarify in the PDMP how requests for blue badge parking from employees would be met.

47 In accordance with Policy T6.1 of the Mayor's intend to publish London Plan, active electrical vehicle charging provision (EVCP) would be provided for 20% of the spaces and the remaining 80% would have passive provision. This provision should be secured via planning condition.

48 The quantum of long-stay residential cycle parking should be increased to a minimum of 573 spaces in line with Policy T5 of the Mayor's intend to publish London Plan. The applicant should also confirm aisle widths and the level of two-tier racks. Spaces for commercial long-stay cycle parking should be identified now prior to the Mayor making his final determination on the application. The proposed level and location of short-stay cycle parking within the public realm is acceptable in accordance with Policy T5 of the Mayor's intend to publish London Plan and guidance set out the London Cycling Design Standards (LCDS). Short-stay residential cycle parking provision within the building receptions, however, should be clarified to demonstrate its accessibility before this can be supported.

Construction servicing and infrastructure protection

49 A draft construction logistics plan (CLP) and delivery and servicing plan (DSP) have been submitted. A full DSP and CLP, both produced in accordance with TfL best practice guidance, should be secured by condition for approval in consultation with TfL. The CLP should be in place before construction commences and the DSP prior to occupation. Funding for a residential travel plan should be secured through the S106 agreement to ensure on-going monitoring and review. Details of the design and construction methodology, demolition, excavation, foundations and superstructure should also be secured by condition.

Local planning authority's position

50 London Legacy Development Corporation planning officers are currently assessing the application. It is understood that the application is supported by officers.

Legal considerations

51 Under the arrangements set out in Article 4 of the Town and Country Planning (Mayor of London) Order 2008 the Mayor is required to provide the local planning authority with a statement setting out whether he considers that the application complies with the London Plan, and his reasons for taking that view. Unless notified otherwise by the Mayor, the Corporation must consult the Mayor again under Article 5 of the Order if it subsequently resolves to make a draft decision on the application, in order that the Mayor may decide whether to allow the draft decision to proceed unchanged or direct the Corporation under Article 6 of the Order to refuse the application. There is no obligation at this present stage for the Mayor to indicate his intentions regarding a possible direction, and no such decision should be inferred from the Mayor's statement and comments.

Financial considerations

52 There are no financial considerations at this stage.

Conclusion

53 London Plan and Mayor's intend to publish London Plan policies on Opportunity Areas, employment land, housing, affordable housing, heritage, urban design, inclusive access, environment and transport are relevant to this application. Whilst the principle of the development is supported, the application does not fully comply with the London Plan and Mayor's intend to publish London Plan. The following changes might, however, lead to the application becoming fully compliant with the London Plan and Mayor's intend to publish London Plan:

- **Principle of development:** The proposed scheme would deliver an optimised residential-led mixed use scheme within an opportunity area and is strongly supported in strategic terms in line with London Plan Policies 2.13 and 3.3 and Policies SD1, E7C, GG2 and H1 of the Mayor's intend to publish London Plan.
- **Affordable housing:** The application site (which comprises Phase 3 of the wider masterplan) would provide 22% affordable intermediate housing by habitable room with public subsidy; however, when combined with the separate proposed changes to Phase 2, the overall provision of affordable housing across the two phases would be 48%. The two phases must be linked by an overarching S106 agreement securing the quantum, tenure, affordability and delivery of the affordable housing, and this must be submitted to the GLA prior to the determination of the current application. The applicant's viability assessment and the Corporation's independent review will be robustly scrutinised by GLA officers to ensure that the maximum amount of affordable housing is secured.
- **Heritage and urban design:** The design is broadly supported and it is not considered that harm would be caused to the setting of nearby heritage assets. Consideration should be given to addressing residential quality issues in relation to access and layout of ground floor residential units.
- **Environment:** Further information is required relating to overheating and the site-wide network. In addition, provision of PV cells should be reconsidered and maximised and a detailed technical study on the potential to decarbonise the masterplan network at the current time should be provided.
- **Transport:** An increase in long-stay residential cycle parking in line with the Mayor's intend to publish London Plan standards and further information and or clarification relating to disabled parking are required; and, the following measures/contributions should be appropriately secured or agreed: contributions to and delivery of new junctions; on-street parking permit restrictions for residents and occupants; car club provision and membership for two years; a parking design management plan; travel plan; provision of electric vehicle charging points; and details of motorcycle parking.

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